

CITY OF WOLVERHAMPTON COUNCIL
Town and Country Planning Act 1990
Town and Country Planning (Development Management Procedure) (England) Order
2010 (as amended)

Agent

Mr Gurprit Benning
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Heathrow, Hyde Park
5th Floor, Hyde Park, Hayes 3
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UB3 4AZ

Applicant

Dean Investment Properties Ltd
3 Woden Road
Wolverhampton
WV10 0AU

Our Ref:	25/01284/FUL
Site:	3 Woden Road Wolverhampton West Midlands WV10 0AU
Proposal:	Demolition of side extension, ground floor rear extension, loft conversion with rear dormer and Change of Use of existing dwelling C3 to 6 person HMO C4 (House in Multiple Occupation) with associated bins & cycle facilities.

City of Wolverhampton Council as the Local Planning Authority hereby **Refuse** permission for the development described in the above application.

The reasons for the Council's decision to refuse permission are:

1. The change of use from a family dwelling to a house in multiple occupation for six people each acting as a separate household, with their own friends, families lifestyles, and patterns and times of movements would be significantly greater and in stark comparison to a single-family home. The activity generated by both people and vehicles, as well as the likelihood of requiring additional refuse facilities will have a detrimental impact on the character of the area. The proposal would constitute an overdevelopment of this property. The proposal would detract from the present level and quality of residential amenity in the area, significantly increasing the potential for noise and disturbance at different times of the day and night, particularly in terms of greater comings and goings and more intensive use of the property. The proposal is therefore contrary to UDP Policies, D6, D10, H6, EP5 and BCCS policies CSP4 and ENV3.

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2. The proposed internal layout fails to provide an acceptable standard of accommodation for current and future occupiers of this building. Four of the proposed bedrooms do not meet the minimum 10 m² requirement and the communal area, including the kitchen, dining and living spaces fall below the minimum 16.5 m² for shared space standard for six occupants. These shortfalls conflict with the Council's HMO Planning Guidance 2018 and Landlords' Guide to Amenity Space Standards for Houses in Multiple Occupation (as amended July 2018) and UDP Policy H6, and BCCS Policies CSP4 and HOU2.
3. The development proposal would fail to promote a safe and accessible environment. The wider area already has high levels of crime. This proposal would likely lead to the potential for further crime and disorder and adding to the fear of crime and undermine community cohesion. In review of this application, West Midlands Police do not support this proposal. The proposal is therefore contrary to UDP policy D10.

NOTE FOR INFORMATION

Any policies referred to on this decision notice are the policies of the Black Country Core Strategy (BCCS), adopted 3rd February 2011 and the saved policies of the Wolverhampton Unitary Development Plan (UDP), adopted in June 2006, unless otherwise stated. The BCCS and UDP can be viewed at www.wolverhampton.gov.uk

In dealing with the application, the local planning authority has worked with the applicant in a positive, creative and proactive manner, however, the development fails to improve the economic, social and environmental conditions of the area, in accordance with paragraph 39 of the National Planning Policy Framework (December 2024).

Appeals to the Secretary of State

- If you are aggrieved by the decision of your local planning authority to refuse permission for the proposed development or to grant it subject to conditions, then you can appeal to the Secretary of State under section 78 of the Town and Country Planning Act 1990.
- If you want to appeal against your local planning authority's decision then you must do so within 6 months of the date of this notice.
- Appeals must be made using a form which you can get from the Secretary of State at Temple Quay House, 2 The Square, Temple Quay, Bristol BS1 6PN (Tel: 0303 444 0000) or online at <https://www.gov.uk/appeal-planning-decision>

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- The Secretary of State can allow a longer period for giving notice of an appeal but will not normally be prepared to use this power unless there are special circumstances which excuse the delay in giving notice of appeal.
- The Secretary of State need not consider an appeal if it seems to the Secretary of State that the local planning authority could not have granted planning permission for the proposed development or could not have granted it without the conditions they imposed, having regard to the statutory requirements, to the provisions of any development order and to any directions given under a development order.

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